

Chandra Pal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 July 2015 · WRIT - C No. 38409 of 2015 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A consumer dissatisfied with the amount claimed as electricity dues must pursue the remedy under Clause 6.5 of the Electricity Supply Code, 2005. The High Court dismissed the writ, leaving that statutory channel open.

FACTUAL SUMMARY

Chandra Pal (initially recorded as Chandra Rai) filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and three others, challenging the amount claimed towards electricity dues. The Division Bench did not examine the correctness of the demand on merits. On 3 August 2015 a correction application was allowed so that the petitioner's name could be amended in the order of 14 July 2015.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory objection

HOLDING

Where a consumer is not satisfied with the amount claimed towards electricity dues, the proper course is the remedy under Clause 6.5 of the Electricity Supply Code, 2005; a writ petition challenging such a demand is dismissed with liberty to pursue that remedy. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY DUES CLAIMED FROM THE PETITIONER WERE CORRECTLY COMPUTED OR PAYABLE.

¶ 1